

Solicitation No. - N° de l'invitation	Amd. No. - N° de la modif.	Client Ref. No. - N° de réf. du client
2026-00562		2026-00562

**RETURN BIDS TO:
RETOURNER LES SOUMISSIONS À :**

Bid Receiving/Réception des soumission
cfia.bidreceipt-receptiondesoumission.acia@inspection.gc.ca

**REQUEST FOR
PROPOSAL**

**DEMANDE DE
PROPOSITION**

Proposal to: **Canadian Food Inspection Agency**

We hereby offer to sell to His Majesty the King in right of Canada, in accordance with the terms and conditions set out herein, referred to herein or attached hereto, the goods, services, and construction listed herein and on any attached sheets at the price(s) set out therefor.

Proposition aux : **Agence canadienne d'inspection des aliments**

Nous offrons par la présente de vendre à Sa Majesté le Roi du chef du Canada, aux conditions énoncées ou incluses par référence dans la présente et aux appendices ci-joints, les biens, services et construction énumérés ici sur toute feuille ci-annexée, au(x) prix indiqué(s).

Comments: - Commentaries :

Title – Sujet Fall Protection and Belay Techniques		Date May, 2026
Solicitation No. – N° de l'invitation 2026-000562		
Client Reference No. – No. De Référence du Client 2026-000562		
Solicitation Closes – L'invitation prend fin		
At /à :	2PM	ET (Eastern Time) HE (heure de l'Est)
On / le :	June 5, 2026	
Delivery - Livraison See herein — Voir aux présentes	Taxes - Taxes See herein — Voir aux présentes	Duty – Droits See herein — Voir aux présentes
Destination of Goods and Services – Destinations des biens et services See herein — Voir aux présentes		
Instructions See herein — Voir aux présentes		
Delivery Required – Livraison exigée See herein — Voir aux présentes	Delivery Offered – Livraison proposée	
Address Inquiries to – Adresser toute demande de renseignements à Catherine Clairoux		
Email Address – Adresse courriel catherine.clairoux@inspection.gc.ca		
Vendor/Firm Name, Address and Representative – Raison sociale, adresse et représentant du fournisseur/de l'entrepreneur:		
Telephone No. – No. de telephone		
Name and title of person authorized to sign on behalf of Vendor/Firm (type or print) – Nom et titre de la personne autorisée à signer au nom du fournisseur/de l'entrepreneur (taper ou écrire en caractères d'imprimerie)		
Signature		Date

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Canadian Food Inspection Agency (CFIA)

Please note this document is part of the Contract Modernization Initiative. For more information please consult the following: [Understanding the Contract Modernization Initiative](#).

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1. Solicitation of Offers.

1.1. Introduction. Canada requests offers from Offerors to meet its requirements. For the convenience of Offerors, a brief description is set out below with detailed requirements in subsequent sections of this solicitation of offers. If interested and able to meet these requirements, Canada appreciates and welcomes an offer.

1.2. Offers. Canada is seeking offers from Offerors to provide services related to the drafting of a Fall Protection Plan, Belay Techniques Training and Annual Equipment Inspections in accordance with the Canada Labour Code (Part II) and CSA Standard Z259, as described in the Statement of Work in Annex A to the Canadian Food Inspection Agency (CFIA).

1.3. Term. The period of the Contract is from Contract award to March 31, 2027.

1.4. Optional Period

- a. Option to Extend.** The Contractor grants Canada the irrevocable option(s) to extend the Contract by up to three (3) additional one-year period(s) under the same terms and conditions and at the prices, rates, or both stated in the Contract.
- b. Exercise of Option.** Only the Contracting Authority may exercise the option to extend by sending written notice to the Contractor at least fifteen (15) calendar days before the expiry of the Contract.

1.5. Disclosure of Greenhouse Gas Emissions and Setting of Reduction Targets. Canada is committed to achieving net-zero greenhouse gas (GHG) emissions by 2050 in an effort to position Canada for success in a green economy and to mitigate climate change impacts. As a result, future solicitation of offers may include the following:

- a.** Evaluation criteria or other instructions in the solicitation of offers or contract documents related to measuring and disclosing your company's GHG emissions;
- b.** An optional or mandatory requirement to join one of the following initiatives in order to submit an offer or if awarded a contract:
 - i.** Canada's Net-Zero Challenge;
 - ii.** the United Nations Race to Zero;
 - iii.** the Science-based Targets Initiative;
 - iv.** the Carbon Disclosure Project (CDP);
 - v.** the International Organization for Standardization (ISO);
 - vi.** Climate Action 100+;
 - vii.** Climate Engagement Canada.
- c.** An optional or mandatory requirement to provide other evidence of your company's commitment and actions toward meeting net-zero targets by 2050.

2. Offer Requirements.

2.1. Security Requirements. There are no security requirements associated with this solicitation of offers.

2.2. Solicitation of Offer Submission Eligibility. This solicitation of offers is subject to the Policy on Reciprocal Procurement. This means that only Canadian Suppliers and Suppliers of an Applicable Trading Partner, as defined in the Annex Solicitation of Offers Definitions, are eligible for this solicitation of offers. Offers submitted by Suppliers of a Non-Trading Partner will be rejected.

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3. Offeror Requirements.

3.1. Offeror Responsibilities. Each Offeror should:

- a. obtain any clarification it considers necessary of the solicitation of offers requirements before submitting an offer;
- b. prepare its offer in accordance with the solicitation of offers instructions;
- c. submit a complete offer by the closing date and time as per the instructions noted in section entitled "Offer Submission";
- d. provide a comprehensible and sufficiently detailed offer, including all requested pricing details that will enable Canada to complete its evaluation based on the solicitation of offers criteria, and
- e. comply with all other requirements of this solicitation of offers.

3.2. Legal Capacity. The offeror must have the legal capacity to contract. If the Offeror is a sole proprietorship, a partnership (if Common Law) or a general partnership (if Civil Law), or a corporate body, the Offeror must provide, if requested by the Contracting Authority, a statement and any requested supporting documentation indicating the laws under which it is registered or incorporated together with the registered or corporate name and place of business. This also applies to offerors submitting an offer as a joint venture.

3.3. Compliance with Code of Conduct. The Offeror must comply with Canada's [Code of Conduct for Procurement](#).

3.4. Ineligibility and Suspension Policy.

- a. **Mandatory Compliance.** The Ineligibility and Suspension Policy (the "Policy") in effect on the date the solicitation of offers is issued, and all related Directives in effect on that date, are incorporated by reference into, and form a binding part of the solicitation of offers. The Offeror must comply with the Policy and Directives, which can be found at the [Office of Supplier Integrity and Compliance website](#).
- b. **Policy Summary.** The Policy sets out the circumstances under which Canada may determine that the Supplier is ineligible to enter, or is suspended from entering into a Contract with Canada. The list of ineligible and suspended Suppliers is maintained on the [Office of Supplier Integrity and Compliance website](#).
- c. **Offeror Responsibilities.** The Offeror must provide the following:
 - i. a [List of Names for integrity verification](#) that includes all information required by the Policy (section 13 – Disclosure); and
 - ii. if the Offeror is unable to certify all of the statements in the sub-clause below entitled "Offeror Certifications", a completed [Integrity Declaration Form](#) providing all requested information and details of any material event that may affect the status of itself, its affiliates or its proposed first-tier subcontractors under the Policy.
- d. **Offeror Certifications.** Subject to the sub-clause below entitled "Integrity Declaration Form", by submitting an offer in response to this solicitation of offers, the Offeror certifies that:
 - i. it has read and understands the [Ineligibility and Suspension Policy](#);
 - ii. it understands that certain circumstances, as described in the Policy, will or may result in a determination of ineligibility or suspension under the Policy;

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- iii. it is aware that Canada may request additional information, certifications, and validations from the Offeror or a third party for the purpose of making a determination of ineligibility or suspension;
- iv. none of the circumstances described in [Appendix 2 of the Policy](#) that will or may result in a determination of ineligibility or suspension, apply to itself, its affiliates or its proposed first tier subcontractors; and
- v. it is not aware of a determination of ineligibility or suspension issued by Canada that applies to it.
- e. **Integrity Declaration Form.** Where an Offeror is unable to provide all of the certifications required by the sub-clause above entitled "Offeror Certifications", at the time of its offer it must submit a completed [Integrity Declaration Form](#).
- f. **Compliance with Certifications.** Canada will declare non-compliant any offer in respect of which the information requested is incomplete or inaccurate, or in respect of which the information contained in a certification or declaration is found by Canada to be false or misleading in any respect. If Canada establishes after award of the Contract that the Offeror provided a false or misleading certification or declaration, Canada may terminate the Contract for default. Pursuant to the Policy, Canada may also determine the Offeror to be ineligible for award of a Contract for providing a false or misleading certification or declaration.

3.5. Conflict of Interest.

- a. **Right to Reject.** Canada may reject an offer if the Offeror, any of its subcontractors, or any of their respective employees or former employees
 - i. was involved in any manner in the preparation of the solicitation of offers or in any situation of conflict of interest or appearance of a conflict of interest, or
 - ii. had access to information related to the solicitation of offers that was not available to other offerors and that would, in Canada's opinion, give or appear to give the Offeror an unfair advantage.
- b. **Experience Not an Unfair Advantage.** Canada will not consider any experience any Offeror has acquired by providing the goods and/or services described in the solicitation of offers (or similar goods and/or services), in itself, as conferring an unfair advantage or creating a conflict of interest.
- c. **Notification of Rejection.** If Canada intends to reject an offer under this section, the Contracting Authority will inform the Offeror and provide the Offeror an opportunity to make representations.

3.6. Insurance. The successful Offeror will be responsible to meet insurance requirements in accordance with the resulting contract section entitled "Insurance".

3.7. Former Public Servants. Offerors who are Former Public Servants in receipt of a Pension or Lump Sum Payment must provide the information required in the "Annex- Offeror Declaration Form" before contract award.

4. Offer Submission.

4.1. Offer Receipt. Subject to provisions for delayed offers, Canada will consider only offers submitted to cfia.bidreceipt-receptiondesoumission.acia@canada.ca, the CFIA's Bid Receiving Unit by the date, time and place indicated on page 1 and the "Offer Submission" section of the solicitation.

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4.2. Offer Sections. Offerors are requested to submit their offers separated into the following sections:

Section I: Technical Offer;

Section II: Financial Offer;

Section III: Offer Submission Form and Offeror Declaration Form

4.3. Delayed Offers.

- a. **Late Offers.** Canada will not consider offers delivered after the offer submission closing date and time, unless they qualify as a delayed offer as described below.
- b. **Cause of Delay.** Canada may consider an offer delivered after the solicitation of offers closing date before Canada awards the Contract if the Offeror can prove the delay is due solely to a delay in the delivery caused by technical issues.
- c. **Evidence of Delay.** The only evidence relating to a delay that Canada will accept are an error or undeliverable date stamp that clearly indicates that the Offeror emailed the offer before the solicitation of offers closing date, or time.

4.4. Offer Submission Method Restrictions. Canada will not accept offers submitted in any other manner.

4.5. Offer Submission Requirements.

- a. **Authority.** Each Offeror (and each member of a Joint Venture submitting an offer) must (i) have legal capacity to contract and (ii) sign the offer by an authorized representative of the Offeror. If a Joint Venture Offeror submits an offer, the Joint Venture will be required to identify its representative chosen to act on behalf of the Joint Venture (if the Offeror has not done so in the offer, Canada will provide it a deadline to do so).
- b. **Procurement Business Number.** Each Offeror (and each member of a Joint Venture submitting an offer) must have a Procurement Business Number (PBN) before contract award. Suppliers may register for a PBN online at [Supplier Registration Information](#).
- c. **Offer Identification.** Each Offeror must ensure that its name, its return address, the solicitation of offers number, and the solicitation of offers closing date and time are clearly visible on any envelope or parcels containing samples or any paper offer as applicable
- d. **Validity of Offers.** Offers will remain open for acceptance for a period of not less than 90 calendar days from solicitation of offers closing date, unless specified otherwise in the solicitation of offers. Canada reserves the right to seek an extension of the offer validity period from all compliant Offerors in writing, at least three calendar days before the end of the offer validity period. If all compliant Offerors agree to extend their offers, Canada will continue with the evaluation of the offers. If not all compliant Offerors extend their offers, Canada, at its sole discretion, will either continue with the evaluation of the offers of those who have accepted the extension or cancel the solicitation of offers.
- e. **Offer Language.** Offerors may submit their documents and supporting information in either English or French.
- f. **Offer Become Property of Canada.** Offers received on or before the solicitation of offers closing date and time will become the property of Canada and Canada will not return them to Offerors. Canada will treat all offers as confidential, subject to the provisions of the [Access to Information Act](#) and the [Privacy Act](#).
- g. **No Assignment of Offers.** An offer cannot be assigned or transferred in whole or in part.

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- h. Joint Ventures.** If a contract is awarded to a Joint Venture, all members of the Joint Venture will be jointly and severally or solidarily liable for the performance of any resulting contract.

4.6. Technical Difficulties of Offer Transmission. Despite anything to the contrary in this solicitation of offers, where an Offeror has commenced transmission of its offer through an electronic submission method, or other online service in advance of the solicitation of offers closing date and time, but due to technical difficulties, Canada was unable to receive or decode the entirety of the Offer by the deadline, Canada may nonetheless accept the entirety of the Offer received after the solicitation of offers closing date and time, provided that the Offeror can demonstrate the following:

- a. The offeror contacted Canada in advance of the solicitation of offers closing date and time to attempt to resolve its technical difficulties; OR
- b. The electronic properties of the Offer documentation clearly indicate that all components of the Offer were prepared in advance of the solicitation of offers closing date and time.

4.7. Completeness of the Offer. After the closing date and time of this solicitation of offers, Canada will examine the Offer to determine completeness. The review for completeness will be limited to identifying whether any information submitted as part of the offer can be accessed, opened, and/or decoded. This review does not constitute an evaluation of the content, will not assess whether the Offer meets any standard or is compliant to all solicitation of offers requirements, but will be solely limited to assessing completeness. Canada will provide the Offeror with the opportunity to submit information found to be missing or incomplete in this review within two business days of notice. The offer will be reviewed and deemed to be complete when the following elements have been submitted by the offeror:

- a. certifications and securities required at offer closing are included;
- b. offers are properly signed, that the offeror is properly identified;
- c. acceptance of the terms and conditions of the solicitation of offers and resulting contract;
- d. that all documents (including certifications, declarations and proofs) created prior to offer closing but due to technical difficulties Canada was unable to receive them, have been properly submitted and received by Canada.

4.8. Provision of Documentation. Canada will make available Notices of Proposed Procurement, solicitation of offers, and related documents for download through the Government Electronic Tendering Service. Canada is not responsible and will not assume any liabilities whatsoever for the information found on websites of third Parties. Canada will not notify Offerors if it amends a Notice of Proposed Procurement, a solicitation of offers, or any related documentation. It will post all amendments (including significant enquiries received and their replies) using Government Electronic Tendering Service. Offerors are responsible for regularly consulting Government Electronic Tendering Service for the most up-to-date information. Canada will not be liable for any oversight on the Offeror's part nor for notification services offered by a third Party.

4.9. Offer Costs. The Offeror is solely responsible for all costs associated with preparing and submitting its offer, as well as any costs it incurs in the evaluation of its offer.

4.10. Applicable Laws. Any Contract must be interpreted and governed, and the relations between the Parties determined, by the laws in force in a Canadian province or territory. Offerors may insert the Canadian province or territory of their choice in the Offer Submission Form. If the Offeror does not include this information in the Offer Submission Form, the applicable laws will be those of **Québec (QC)**.

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4.11. Entire Requirement. The solicitation of offers documents contain all the requirements relating to the solicitation of offers; no other information or documentation is relevant. Offerors should not assume that practices used under previous solicitations of offers or contracts will continue or that the Offeror's existing capabilities meet the requirements of the solicitation of offers simply because they have met previous requirements.

5. Communications.

5.1. Communications During Solicitation of Offers Period. To ensure the integrity of the competitive process, the Offeror must direct all questions and other communications regarding the solicitation of offers only to the Contracting Authority identified in the solicitation of offers. Failure to comply may result in Canada rejecting the offer.

- a. **Period for Questions.** Offerors should submit all questions in writing no later than three (3) business days before the offer closing date. Canada may not respond to questions submitted after this.
- b. **Detail of Questions.** Offerors must accurately reference the numbered item of the solicitation of offers to which the question relates and explain each question in sufficient detail to enable Canada to provide an accurate answer.
- c. **Proprietary Questions.** For any technical questions containing proprietary information, Offerors must clearly mark those questions as "proprietary". Canada will treat such questions as proprietary except where Canada determines that the question is not of a proprietary nature. Canada may edit the question(s) or may request that the Offeror revise the question(s) to eliminate the proprietary nature of the question(s) and Canada can provide the answer to all Offerors. Canada may not answer questions that are not in a form it can distribute to all Offerors.

5.2. Offer Debriefings. Offerors may request a debriefing on the results of the solicitation of offers process. Offerors should make such a request to the Contracting Authority within 15 business days from its receipt of the results of the solicitation of offers process. Canada may provide the debriefing in writing, by telephone, or via MS Teams.

5.3. Offer Challenge and Recourse Mechanisms.

- a. **Challenges to Procurement Process.** Several mechanisms are available to potential suppliers to challenge aspects of the procurement process up to and including contract award.
- b. **Offer Challenge and Recourse Mechanisms.** Canada encourages suppliers to bring their concerns first to the attention of the Contracting Authority. Canada's CanadaBuys website, under the heading "[Following up on a bid](#)", contains information on potential complaint bodies such as:
 - i. Office of the Procurement Ombud (OPO)
 - ii. Canadian International Trade Tribunal (CITT)
- c. **Deadlines for Filing Complaints.** There are strict deadlines for filing complaints; the time periods vary depending on the particular complaint body. Suppliers should therefore act quickly when they want to challenge any aspect of the procurement process.

6. Technical Proposal and Forms.

6.1. Technical Offer Contents.

- a. **Requirements.** Offerors should:

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- i. demonstrate their understanding of the requirements contained in the solicitation of offers;
 - ii. concisely explain how they will meet these requirements; and
 - iii. address the points that are subject to the evaluation criteria against which the Offer will be evaluated. Simply repeating a statement contained in the solicitation of offers is not sufficient.
- b. Organization.** Offerors should address and present topics in the order of the evaluation criteria under the same headings. To avoid duplication, an Offeror may refer to different sections of its offer by identifying where it has already addressed the subject topic, by identifying the specific paragraph and page.

6.2. Offer Submission Form. Each Offeror is requested to include the Offer Submission Form (Annex Offer Submission Form) with their offers. If Canada determines that the information required by the Offer Submission Form is incomplete or requires correction, Canada will provide the Offeror with a deadline to do so.

6.3. Offeror Declaration Form. Each Offeror is required to include the Offeror Declaration Form (Annex Offeror Declaration Form) in which it certifies to Canada all the information required by the Offeror Declaration. If Canada determines that the information required by the Offeror Declaration Form is incomplete or requires correction, Canada will provide the Offeror with a deadline to do so.

7. Financial Proposal.

7.1. Financial Offer. Offerors must submit their financial offer in accordance with the Basis of Payment.

7.2. Exchange Rate Fluctuation. Canada is not offering exchange rate fluctuation risk mitigation for this solicitation of offer. Canada will declare any offer non-compliant if there is any indication that offer is conditional on exchange rate fluctuation protection.

8. Technical Evaluation.

8.1. Mandatory Technical Criteria. Canada will review each offer for compliance with the mandatory technical criteria of the solicitation of offers. Any element of the technical criteria identified specifically with the words “must” or “mandatory” is a mandatory requirement. The mandatory technical criteria are:

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MANDATORY TECHNICAL CRITERIA		SUBSTANTIATION
MC1	The bidder must demonstrate that they have at least two (2) years of experience in drafting fall protection plans compliant with the Canada Labour Code, Occupational Health and Safety Regulations (COHSR) as of the bid closing date. To demonstrate their experience, the bidder must provide project examples where this experience was acquired. Each project must include: • Name of the client / department / agency or company; • Project start and end dates (MM-YYYY to MM-YYYY); • A summary of the tasks performed directly related to the drafting or updating of a fall protection plan; • A reference: name and valid email address	
MC2	The technicians proposed by the bidder must be SPRAT (Society of Professional Rope Access Technicians) certified, competent, and must have knowledge of applicable federal regulations. To demonstrate their qualifications, the bidder must provide a copy of the SPRAT certifications of the technicians responsible for drafting the Fall Protection Plan in collaboration with CFIA experts, and demonstrate that the technicians have knowledge of federal regulations by providing project examples where the experience was acquired, including: • Name of the client / department / agency or company; • Project start and end dates (MM-YYYY to MM-YYYY); • A summary of the tasks performed directly related to the drafting or updating of a fall protection plan; • A reference: name and valid email address.	
MC3	The trainers proposed by the bidder must be SPRAT certified, have experience delivering training in industrial or maritime environments, and must have knowledge of the requirements of COHSR Section 12.15(2). To demonstrate their experience, the bidder must provide a copy of the SPRAT certifications of the trainers and provide project examples where the experience was acquired, including: • Name of the client / department / agency or company; • Project start and end dates (MM-YYYY to MM-YYYY); • A summary of the tasks performed directly related to the drafting or updating of a fall protection plan; • A reference: name and valid email address.	

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MC4	The bidder must demonstrate that they have adequate facilities in the Province of Quebec (QC), Canada, specifically in the regions of Montréal (QC), Québec City (QC), Saint-Hyacinthe (QC), or surrounding areas, as well as the necessary equipment to conduct practical exercises. To demonstrate their capacity, the bidder must provide: • The complete address of the location where the training will take place; • The maximum number of participants who can be trained simultaneously; • A brief description of the facilities and equipment available.	
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9. Financial Evaluation.

9.1. Evaluation of Price. Canada will evaluate all offers in Canadian dollars, Applicable Taxes excluded, delivery, and Canadian customs duties and excise taxes included.

9.2. Price Justification. If an offer is the sole compliant offer received, the Offeror must provide, on Canada's request, one or more of the following:

- a. a current published price list indicating the percentage discount available to Canada;
- b. a copy of paid invoices for the like quality and quantity of the goods, services, or both sold to other customers;
- c. a price breakdown of all costs (including labour, materials, transport, general and administrative overhead, transportation, etc.) and profit;
- d. price or rate certifications; and
- e. any other supporting documentation that Canada may request.

10. Evaluation Procedures.

10.1. Assessment. Canada will assess offers in accordance with the entire requirement of the solicitation of offers including the technical evaluation criteria. Canada will declare any offer that fails to meet all mandatory solicitation requirements non-compliant.

10.2. Conduct of Evaluation.

- a. **Support for Offer Requirements.** Canada may, but will have no obligation to, do the following:
 - i. seek clarification or verification as to any information provided,
 - ii. contact any references to verify any information it submitted,
 - iii. request information about the Offeror's legal status,
 - iv. conduct a survey of the Offeror's facilities,
 - v. examine the Offeror's technical, managerial, and financial capabilities,
 - vi. correct any error in
 1. the extended pricing of offers by using unit pricing, or
 2. the quantities in offers to reflect the quantities stated in the solicitation of offers (and, in the case of error in the extension of prices, the unit price will govern),
 - vii. verify any information the Offeror provided, or
 - viii. interview, at the Offeror's sole cost, the Offeror, any resources it proposes to fulfill the solicitation of offers requirements or both.

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- b. Compliance.** The Offeror must comply with any such request within the time specified in Canada's request. Failure to comply will render the offer non-compliant.

10.3. Evaluation Based on Documents Provided. Unless otherwise specified in this solicitation of offers, Canada will evaluate only the documentation provided with the offer. Canada will not consider information such as references to website addresses where additional information can be found, or technical manuals or brochures not submitted with the offer.

10.4. Evaluation Team. An evaluation team composed of representatives of Canada will evaluate the offers.

10.5. Rights of Canada. Canada may:

- a. reject any or all offers in response to the solicitation of offers;
- b. enter into negotiations with Offerors on any or all aspects of their offers;
- c. accept any offer in whole or in part without negotiations;
- d. cancel the solicitation at any time;
- e. reissue the solicitation;
- f. if no compliant offers are received and the requirement is not substantially modified, reissue the solicitation of offers by inviting only the Offerors who submitted an offer to resubmit within a period designated by Canada; or
- g. negotiate with the sole compliant Offeror to ensure the best value to Canada.

10.6. Rejection of Offer.

- a. **Corrective Measure Rejection.** Canada **will** reject an offer where the Offeror or subcontractor included as part of the offer is subject to a corrective measure, following an assessment under the Vendor Performance Corrective Measure (VPCM) Policy, which renders them ineligible to offer on the requirement.
- b. **Rejection for Other Causes.** Canada **may** reject an offer where:
 - i. **Bankruptcy.** The Offeror is bankrupt or its activities are inoperable for an extended period;
 - ii. **Improper Conduct.** The Offeror or an employee or subcontractor included as part of the offer:
 - 1. based on evidence satisfactory to Canada, has committed fraud, bribery, fraudulent misrepresentation or failed to comply with laws protecting individuals against any manner of discrimination;
 - 2. based on evidence satisfactory to Canada, has conducted themselves improperly in the past;
 - iii. **Suspension or Termination.** The Offeror or an employee or subcontractor included as part of the offer has been suspended or terminated by Canada for default under a contract with Canada;
 - iv. **Poor Performance.** In Canada's opinion, the Offeror's performance on other contracts, including the efficiency and workmanship as well as the extent to which the Offeror performed the work in accordance with contractual clauses and conditions, is sufficiently poor to jeopardize the successful completion of the requirement;
 - v. **Not Good Value.** In Canada's opinion, it does not offer good value to Canada;
 - vi. **Prejudicing Integrity or Fairness - Multiple Offers from Single Offeror or Joint Venture.** Canada may apply additional scrutiny when it receives multiple offers in response to a

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solicitation of offers from a single Offeror or a Joint Venture. Canada may reject any offer submitted by a single Offeror or Joint Venture if their inclusion

1. in the evaluation has the effect of prejudicing the integrity and fairness of the process, or
2. in the procurement process would distort the solicitation of offers evaluation or would not provide good value to Canada.

vii.Ability to Make Representations. If Canada intends to reject an offer under (iii) or (iv), the Contracting Authority will inform the Offeror and give the Offeror ten calendar days within which to make representations, before making a final decision on the offer rejection.

11. Basis of Selection.

11.1. Lowest Evaluated Price with Mandatory Technical Criteria. For Canada to declare an offer compliant, the offer must comply with the requirements of the solicitation of offers and meet all mandatory technical evaluation criteria. Canada will consider the compliant offer with the lowest evaluated price for award.

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RESULTING CONTRACT CLAUSES

The following clauses and conditions apply to and form part of any contract resulting from the solicitation of offer being accepted.

1. Summary.

1.2. Contract Summary. The Contract is for the provision of services related to the drafting of a Fall Protection Plan, Belay Techniques Training and Annual Equipment Inspections in accordance with the Canada Labour Code (Part II) and CSA Standard Z259, as described in the Statement of Work in Annex A.

2. Performance of Work.

2.1. No Security Requirement. There is no security requirement applicable to the Contract.

2.2. Conduct of the Work.

- a. Performance.** Subject to section "Suspension of the Work", the Contractor agrees to fulfill all obligations in full compliance with the requirements and Specifications of the Contract, regardless of any potential dispute with Canada. The Contractor must:
 - i. perform the Work diligently and efficiently;
 - ii. except for Government Property, supply everything necessary to perform the Work;
 - iii. use, as a minimum, quality assurance procedures, inspections and controls generally used and recognized by the industry to ensure the degree of quality required by the Contract;
 - iv. select and employ a sufficient number of qualified people; and
 - v. perform the Work in accordance with standards of quality acceptable to Canada and in full conformity with the Specifications and all the requirements of the Contract.
- b. Responsibilities.** The Contractor represents and warrants that it and all its resources and subcontractors:
 - i. are competent to perform the Work;
 - ii. have everything necessary to perform the Work, including the resources, facilities, labour, technology, equipment, and materials;
 - iii. have the necessary qualifications, including knowledge, skill, know-how and experience, and the ability to use them effectively to perform the Work; and
 - iv. will maintain any credentials, accreditations, licenses and certifications necessary to perform the Work throughout the duration of the Contract.

2.3. Subcontracts.

- a. Right to Subcontract.** The Contractor may subcontract the supply of goods or services that are customarily subcontracted by the Contractor. In any other instance, the Contractor must obtain the prior consent in writing of the Contracting Authority. The Contracting Authority may require the Contractor to provide such particulars of the proposed subcontract as he considers necessary.
- b. Contractor Responsibilities.** Subcontracting does not relieve the Contractor from any of its obligations under the Contract or impose any liability upon Canada to a subcontractor. In any subcontract, the Contractor agrees to bind the subcontractor by the same conditions by which the Contractor is bound under the Contract, unless the Contracting Authority requires or agrees otherwise, with the exception of requirements under the Federal Contractors Program for employment equity which only apply to the Contractor.

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3. Term of the Contract.

3.1. Initial Term. The Work is to be performed during the period of Contract award to March 31, 2027.

3.2. Optional Period.

- a. **Option to Extend.** The Contractor grants Canada the irrevocable option(s) to extend the Contract by up to three (3) additional one-year period(s) under the same terms and conditions and at the prices, rates, or both stated in the Contract.
- b. **Exercise of Option.** Only the Contracting Authority may exercise the option to extend by sending written notice to the Contractor at least fifteen (15) calendar days before the expiry of the Contract.

4. Inspection and Acceptance.

4.1. Inspection, Acceptance and Cure.

- a. **Canada's Rights.** All the Work is subject to inspection and acceptance by Canada.
 - i. **Inspection and Acceptance.** Canada has the right to inspect and accept all Work. Canada's inspection and acceptance of the Work by Canada do not relieve the Contractor of its responsibility for defects or other failures to meet the requirements of the Contract.
 - ii. **Rejection and Cure.** If Canada rejects any Work, it may require the Contractor to correct or replace the Work at no additional cost.

5. Basis of Payment.

5.1. Basis of Payment – Firm Price (all Work). In consideration of the Contractor satisfactorily completing all of its obligations under the Contract, Canada will pay the Contractor a firm price, as specified in the Basis of Payment at Annex B for a cost of (to be inserted at Contract award). Customs duties included and Applicable Taxes are extra. Canada will not pay the Contractor for any design changes, modifications or interpretations of the Work, unless they have been approved, in writing, by the Contracting Authority before their incorporation into the Work.

6. Fees.

6.1. Limitation of Expenditure.

- a. **Total Expense.** Canada's total liability to the Contractor under the Contract must not exceed \$ (to be inserted at Contract award). Customs duties are included and Applicable Taxes are extra.
- b. **Modifications.** No increase in the total liability of Canada or in the price of the Work resulting from any design changes, modifications or interpretations of the Work, will be authorized or paid to the Contractor unless these design changes, modifications or interpretations have been approved, in writing, by the Contracting Authority before their incorporation into the Work. The Contractor must not perform any work or provide any service that would result in Canada's total liability being exceeded before obtaining the written approval of the Contracting Authority. The Contractor must notify the Contracting Authority in writing as to the adequacy of this sum:
 - i. when it is 75% committed, or
 - ii. four months before the contract expiry date, or

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iii. as soon as the Contractor considers that the contract funds provided are inadequate for the completion of the Work, whichever comes first.

- c. **Estimates.** If the notification is for inadequate contract funds, the Contractor must provide to the Contracting Authority a written estimate for the additional funds required. Provision of such information by the Contractor does not increase Canada's liability.

7. Payments.

7.1. Invoices.

- a. **Invoice Submission.** The Contractor must submit invoices for each delivery in accordance with the Contract. Each invoice must indicate whether it covers partial or final delivery.
- b. **Invoice Details.** Invoices must show:
- i. the date, the name and address of the client department, item or reference numbers, deliverable or description of the Work, contract number, Client Reference Number , Procurement Business Number, and financial code(s);
 - ii. details of expenditures (such as item, quantity, unit of issue, unit price, fixed time labour rates and level of effort, subcontracts, as applicable) in accordance with the Basis of Payment, exclusive of Applicable Taxes;
 - iii. deduction for holdback, if applicable;
 - iv. the extension of the totals, if applicable;
 - v. if applicable, the method of delivery together with date, case numbers and part or reference numbers, shipment charges and any other additional charges; and
 - vi. Applicable Taxes as a separate item along with corresponding registration numbers from the tax authorities. The Contractor must identify on all invoices all items that are zero-rated, exempt or to which Applicable Taxes do not apply.
- c. **Payment of Taxes.** Canada will pay Applicable Taxes. It is the sole responsibility of the Contractor to charge Applicable Taxes at the correct rate. The Contractor must pay Applicable Taxes, ancillary taxes, and any commodity tax, on taxable goods or services used or consumed in the performance of the Contract (in accordance with applicable legislation), including for material incorporated into real property.
- d. **Exemptions.** The Contractor is not entitled to use Canada's exemptions from any tax, such as provincial sales taxes, unless otherwise specified by law.
- e. **Withholding for Non-Residents.** Canada will withhold 15 percent of the amount to pay the Contractor in respect of services provided in Canada if the Contractor is not a resident of Canada unless the Contractor obtains a valid waiver from the Canada Revenue Agency.

7.2. Invoicing Instructions.

- a. **Invoice Submission.** The Contractor cannot submit any invoices until all Work identified in the invoice is completed.
- b. **Invoice Distribution.** The Contractor must forward:
- i. the invoice to the Project Authority for certification and payment.

7.3. Payment Period. Canada will pay the Contractor's undisputed invoice amount within 30 days after receipt of invoice in acceptable form and content. In the event an invoice is not of an acceptable form and content, Canada will notify the Contractor within 15 days of receipt and the 30 day payment period will begin on receipt of a conforming invoice.

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7.4. Late Payments.

- a. **Interest on Late Payments.** Canada will pay the Contractor simple interest at the Average Rate plus 3 percent per year on any amount that is Overdue, from the date that amount becomes Overdue until the day before the date of payment, inclusive. The Contractor is not required to provide notice to Canada for interest payable.
- b. **Exceptions.** Canada will pay interest only if Canada is responsible for the delay in paying the Contractor. Canada will not pay interest on Overdue advance payments.

7.5. Right to Set-Off. When Canada makes a payment to the Contractor, Canada may deduct any amount payable to Canada by the Contractor under this or any other current contract.

7.6. Electronic Payment of Invoices. The Contractor accepts that Canada will use the following electronic payment instruments:

- a. Direct Deposit (Domestic and International)

7.7. Taxes.

- a. Federal government departments and agencies are required to pay Applicable Taxes.
- b. Applicable Taxes will be paid by Canada as provided in the Invoice Submission section. It is the sole responsibility of the Contractor to charge Applicable Taxes at the correct rate in accordance with applicable legislation. The Contractor agrees to remit to appropriate tax authorities any amounts of Applicable Taxes paid or due.
- c. The Contractor is not entitled to use Canada's exemptions from any tax, such as provincial sales taxes, unless otherwise specified by law. The Contractor must pay applicable provincial sales tax, ancillary taxes, and any commodity tax, on taxable goods or services used or consumed in the performance of the Contract (in accordance with applicable legislation), including for material incorporated into real property.
- d. In those cases where Applicable Taxes, customs duties, and excise taxes are included in the Contract Price, the Contract Price will be adjusted to reflect any increase, or decrease, of Applicable Taxes, customs duties, and excise taxes that will have occurred between offer submission and contract award. However, there will be no adjustment for any change to increase the Contract Price if public notice of the change was given before offer submission date in sufficient detail to have permitted the Contractor to calculate the effect of the change.
- e. **Tax Withholding of 15 Percent – Canada Revenue Agency.**
Pursuant to the [Income Tax Act](#), 1985, c. 1 (5th Supp.) and the [Income Tax Regulations](#), Canada must withhold 15 percent of the amount to be paid to the Contractor in respect of services provided in Canada if the Contractor is not a resident of Canada, unless the Contractor obtains a valid waiver from the [Canada Revenue Agency](#). The amount withheld will be held on account for the Contractor in respect to any tax liability which may be owed to Canada.

8. Method of Payment.

8.1. Multiple Payments. Canada will pay the Contractor upon completion and delivery of units if:

- a. the Contractor has properly submitted an accurate and complete invoice along with any other necessary documents,
- b. Canada has verified all such documents, and
- c. Canada has accepted the Work delivered.

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9. Government Property.

9.1. Care of Property. The Contractor must take reasonable and proper care of all Government Property while it is in its possession or subject to its control. The Contractor is responsible for any loss or damage resulting from its failure to do so other than loss or damage caused by ordinary wear and tear.

10. Access to Information.

10.1. Access to Information. Records created by the Contractor, and under the control of Canada, are subject to the [Access to Information Act](#). The Contractor acknowledges the responsibilities of Canada under the [Access to Information Act](#) and must, to the extent possible, assist Canada in discharging these responsibilities. Furthermore, the Contractor acknowledges that section 67.1 of the [Access to Information Act](#) provides that any person, who destroys, alters, falsifies or conceals a record, or directs anyone to do so, with the intent of obstructing the right of access that is provided by the [Access to Information Act](#) is guilty of an offence and is liable to imprisonment or a fine, or both.

11. Accounts and Audit.

11.1. Accounts and Records.

- a. **Requirement to Keep Records.** The Contractor must maintain complete and accurate records of the estimated and actual cost of the Work, to enable Canada to determine whether the Contractor has performed the Work, the price charged for the Work is in accordance with the Contract terms and Canada has achieved best value.
- b. **Types of Records.** Such records include all tender calls, quotations, contracts, correspondence, source documents for accounting entries such as Excel or other spread sheets in numeric and machine readable form (not PDF copies), books and ledgers of initial accounting entries, work sheets, spreadsheets and other documentation supporting cost allocations, computations, reconciliations and assumptions made by the Contractor in relation to the Contract. The Contractor can only use copies if originals are unavailable due to unusual circumstances, such as fire, flood or theft.
- c. **Accounting System.** The Contractor must establish and maintain an accounting system that enables Canada to readily identify these records.
- d. **Availability of Records.** The Contractor must make these records available on request, for examination by Canada, or by Canada's representatives during normal business hours at the Contractor's office or place of business. If no such location is available, then the Contractor must make financial records, with the supporting or underlying documents and records, available for examination at a time and location that is convenient for Canada.
- e. **Retention of Records.** The Contractor must maintain such records, and Canada and its authorized representatives may examine such records, at all times during the period of this Contract and until the later of seven years after final payment and the settlement of all outstanding claims and disputes. Should an examination reveal any overpayments by Canada, these will be claimed by Canada and immediately repaid by the Contractor.
- f. **Review by Canada.** Canada and its authorized representatives may examine, and make copies of, or extract from, all such records in whatever form they may be kept, relating to or pertaining to this Contract, including but not limited to those kept by the Contractor, its employees, agents, successors, and subcontractors.

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- g. Full Compliance.** The Contractor must ensure that all subcontractors and affiliates comply with the requirements of this clause.

12. Insurance.

12.1. Insurance Requirements. The Contractor is responsible for deciding if insurance coverage is necessary to fulfill its obligations under the Contract and to ensure compliance with any applicable law. Any insurance acquired or maintained by the Contractor is at the Contractor's expense and for its own benefit and protection. It does not release the Contractor from or reduce its liability under the Contract.

13. Certifications and Additional Information.

13.1. Compliance with Certifications. Unless specified otherwise, the Contractor will be in default if it does not continuously comply with the certifications it provided in its offer or before contract award or if the Contractor does not provide evidence about its compliance when requested by the Contracting Authority. Canada may verify the Contractor's certifications throughout the Contract Period.

13.2. Compliance with Laws. The Contractor must comply with all laws applicable to the performance of the Contract. The Contractor must provide evidence of compliance with such laws to Canada at such times as Canada may reasonably request.

13.3. Compliance with Code of Conduct. The Contractor must comply with the [Code of Conduct for Procurement](#).

13.4. Contingency Fees. The Contractor certifies and agrees that it has not paid and will not pay, directly or indirectly, any contingency fee for the solicitation, negotiation or obtaining of the Contract to any person (including, without limitation any individual who is required to file a return with the registrar pursuant to section 5 of the [Lobbying Act](#)), other than an employee of the Contractor acting in the normal course of the employee's duties. In this section:

- a. "contingency fee" means any payment or other compensation that depends or is calculated based on a degree of success in soliciting, negotiating or obtaining the Contract; and
- b. "person" included any individual who is required to file a return with the registrar pursuant to section 5 of the [Lobbying Act](#) 1985, c. 44 (4th Supplement).

13.5. No Bribe. The Contractor certifies that it has not and will not offer, promise, give or pay any bribe, gift, benefit, or other inducement directly or indirectly to any official or employee of Canada or to any member of their family, in order to influence the issuance or administration of the Contract.

13.6. No Influence; No Financial Interest. The Contractor must not influence, seek to influence, or otherwise take part in any decision of Canada that might further the Contractor's own interests. The Contractor must have no financial interest in the business of any third party that causes or would appear to cause a conflict of interest in connection with the performance of the Work. The Contractor must immediately declare any such financial interest to the Contracting Authority.

13.7. No Conflict. The Contractor warrants that, to the best of its knowledge after making diligent inquiry, no conflict exists or is likely to arise in its performance of the Contract. If the Contractor becomes aware of any matter that causes or is likely to cause such a conflict, the Contractor must immediately disclose it to the Contracting Authority. If the Contracting Authority is of the reasonable opinion that such a conflict exists, it may either (i) require the Contractor to take steps to deal with the conflict or (ii)

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terminate the Contract for default. In this section, “conflict” means any matter, circumstance, interest, or activity affecting the Contractor, its personnel, or its subcontractors, that may impair or may appear to impair its ability to perform the Work diligently and independently.

13.8. Ethics Codes for Public Service. The Contractor acknowledges that individuals who are subject to the provisions of the [Conflict of interest Act](#), the Conflict of interest Code for Members of the House of Commons, the Values and Ethics Code for the Public Service or all other codes of values and ethics applicable within specific organizations cannot derive any direct or indirect benefit from the Contract.

13.9. Ineligibility and Suspension Policy Provisions. The Contract incorporates the *Ineligibility and Suspension Policy* and all related Directives incorporated by reference into the solicitation of offers on its closing date, and form a binding part of the Contract. The Contractor must comply with the provisions of the *Ineligibility and Suspension Policy* and Directives, found on Public Works and Government Services Canada’s website at [Ineligibility and Suspension Policy](#).

13.10. Federal Contractors Program for Employment Equity - Default by the Contractor. The Contractor agrees that, when an Agreement to Implement Employment Equity (AIEE) exists between the Contractor and Employment and Social Development Canada (ESDC)-Labour, the AIEE must remain valid throughout the Contract Period. If the AIEE becomes invalid, Canada will add the name of the Contractor to the "FCP Limited Eligibility to Offer" list. The imposition of such a sanction by ESDC will result in the Contractor being in default.

13.11. Harassment in the Workplace.

- a. The Contractor acknowledges the responsibility of Canada to ensure, for its employees, a healthy work environment, free of harassment. A copy of the [Directive on the Prevention and Resolution of Workplace Harassment and Violence](#), which also applies to the Contractor, is available on the Treasury Board Web site.
- b. The Contractor must not, either as an individual, or as a corporate or unincorporated entity, through its employees or subcontractors, harass, abuse, threaten, discriminate against or intimidate any employee, contractor or other individual employed by, or under contract with Canada. Canada will advise the Contractor in writing of any complaint and the Contractor will have the right to respond in writing. Upon receipt of the Contractor's response, the Contracting Authority will, at its entire discretion, make a determination regarding the validity of the complaint and decide on any action required.

13.12. Invoice Submittal Certification. By submitting an invoice, the Contractor certifies that the invoice is consistent with the Work delivered and is in accordance with the Contract.

14. Proactive Disclosure of Contracts with Former Public Servants.

14.1. Proactive Disclosure of Contracts with Former Public Servants. By providing information on its status, with respect to being a former public servant in receipt of a [Public Service Superannuation Act](#) (PSSA) pension, the Contractor has agreed that this information will be reported on departmental websites as part of the published proactive disclosure reports, in accordance with [Contracting Policy Notice: 2019-01](#) of the Treasury Board Secretariat of Canada.

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15. International Sanctions.

15.1. Sanctions Limitations. Canada cannot accept delivery of goods or services that originate, directly or indirectly, from the countries or persons subject to [economic sanctions](#).

15.2. Contractor Obligations.

- a. The Contractor must:
 - i. not supply to the Government of Canada any goods or services that are subject to economic sanctions,
 - ii. comply with changes to the regulations imposed during the Contract Period, and
 - iii. immediately advise Canada if it is unable to perform the Work because of the imposition of economic sanctions against a country or person or the addition of a good or service to the list of sanctioned goods or services.
- b. If the Parties cannot agree on a workaround plan, Canada will terminate the Contract for convenience.

16. Reciprocal Procurement Compliance.

16.1. Change of Location of Place of Business. The Contractor must notify the Contracting Authority in writing within 10 calendar days of any change in the location of its place of business taking effect, or, if the Contractor is a joint venture, any change in the location of the place of business of any member of the joint venture. Where possible, Canada requests that the Contractor provide as much advance notice as possible in writing of any proposed or planned change to the Contractor's place of business.

16.2. Termination Due to Change of Location. If Canada determines in its sole discretion that a change in location results in the Contractor no longer qualifying as a Canadian Supplier or a Supplier of an Applicable Trading Partner under this solicitation of offers, Canada may terminate the contract for default. It may also terminate the contract on a "no-fault" basis by providing thirty days notice to the Contractor.

Canada will only pay according to the Basis of Payment, for any part of the Work delivered, inspected, and accepted up to the date of termination. Despite any other provision of the Contract, there will be no other costs that will be paid to the Contractor as a result of the termination.

17. Anti-forced Labour Requirements.

17.1. Contractor's Statement. The Contractor states that the Work is not mined, manufactured, or produced wholly or in part by forced labour. In performing the Contract and regardless of who acts as an importer, the Contractor must not, directly or indirectly, deliver Work if it is mined, manufactured, or produced wholly or in part by forced labour.

17.2. Canada's Reasonable Grounds for Termination. If Canada has reasonable grounds to believe the Work was or is mined, manufactured, produced or carried out in whole or in part by forced labour or was or is linked to human trafficking, Canada may terminate the Contract for default. This determination is to be grounded in credible evidence from a reliable source.

17.3. Contractor's Conviction in Canada of Specified Offences. Canada may terminate the Contract for default if the Contractor has, in the past three years, been convicted of any of the following offences under the [Criminal Code](#) or the [Immigration and Refugee Protection Act](#):

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a. Criminal Code.

- i. section 279.01 (Trafficking in persons),
- ii. section 279.011 (Trafficking of a person under the age of eighteen years),
- iii. subsection 279.02(1) (Material benefit - trafficking),
- iv. subsection 279.02(2) (Material benefit - trafficking of person under 18 years),
- v. subsection 279.03(1) (Withholding or destroying documents - trafficking),
- vi. subsection 279.03(2) (Withholding or destroying documents - trafficking of person under 18 years), or

b. Immigration and Refugee Protection Act.

- i. section 118 (Trafficking in persons).

17.4. Contractor's Conviction Abroad of Similar Offences. If the Contractor has, in the past three years, been convicted of an offence in a jurisdiction other than Canada that, in Canada's opinion, is similar to any of the offences identified in the immediately preceding clause entitled "Contractor's Conviction in Canada of Specified Offences", Canada may immediately terminate the Contract for default.

17.5. Determination of Similarity of Offences. For the purposes of determining whether a foreign offence is similar to a listed offence, Canada will take into account the following factors:

- a. in the case of a conviction, whether the court acted within its jurisdiction,
- b. whether the Contractor was afforded the right to appear during the court's proceedings or to submit to the court's jurisdiction,
- c. whether the court's decision was obtained by fraud, or
- d. whether the Contractor was entitled to present to the court every defence that the Contractor would have been entitled to present if the proceeding had been tried in Canada.

17.6. Representations from Contractor. If Canada intends to terminate the Contract under this section, Canada will so inform the Contractor and give the Contractor an opportunity to make written representations before making a final decision. Unless Canada establishes a different deadline, the Contractor must submit such written representations within 30 calendar days from receiving Canada's notice of concern.

18. Termination and Suspension.

18.1. Termination for Convenience.

- a. **Right to Terminate.** Canada may terminate the Contract for convenience in whole or in part by giving written notice to the Contractor. The termination for convenience will take effect immediately or at the time specified in the termination notice.
- b. **Effect of Termination.** Upon termination for convenience of the Contract
 - i. the Contractor must comply with the requirements of the termination notice; or
 - ii. if Canada terminates the Contract in part only, the Contractor must proceed to complete any part of the Work that is not part of the termination notice.
- c. **Payments.** Canada will pay the Contractor
 - i. according to the Basis of Payment, for any part of the Work delivered, inspected, and accepted whether completed before, or after the termination in accordance with the Contract;
 - ii. Costs incurred by the Contractor plus a fair and reasonable profit thereon as determined by Canada in accordance with profit provisions, for any part of the Work commenced, but not completed, before the date of the termination notice; and

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- iii. Costs incidental to the termination of the Work incurred by the Contractor but not including the cost of severance payments or damages to employees whose services are no longer required, except wages that the Contractor is obligated by statute to pay.
- d. **Maximum Payment.** The total of the amounts, which Canada may pay the Contractor under this section, together with any amounts paid, due or becoming due to the Contractor must not exceed the Contract Price. Canada may reduce the payment in respect of any part of the Work, if upon inspection, it does not meet the requirements of the Contract.
- e. **Acknowledgments.**
 - i. **Claims.** The Contractor will have no claim for damages, compensation, loss of profit, interest, allowance arising out of any termination notice given by Canada under this section except to the extent that this section expressly provides;
 - ii. **Anticipated Profits.** The Contractor agrees that it is not entitled to any anticipated profit on any part of the Contract terminated; and
 - iii. **Repayments.** The Contractor agrees to repay immediately to Canada the portion of any advance payment that is unliquidated at the date of the termination.

18.2. Termination for Default.

- a. **Right to Terminate.** Canada may, by giving written notice to the Contractor, terminate the Contract or any part of the Contract if the Contractor
 - i. fails to perform any term of the Contract, or
 - ii. becomes bankrupt, makes an assignment for the benefit of creditors, or if a receiver is appointed under a debt instrument or a receiving order is made against the Contractor, or an order is made or a resolution passed for the winding-up of the Contractor.
- b. **Effect of Termination.**
 - i. For (a)(i) above, the termination will take effect immediately or at the expiration of a cure period specified in the notice, if the Contractor has not cured the default to the satisfaction of the Contracting Authority within that cure period.
 - ii. For (a)(ii) above, the termination will take effect immediately.
 - iii. **No Further Payment.** If Canada terminates the Contract for default, the Contractor will have no claim for further payment except as provided in this section;
 - iv. **Payment of Outstanding Amounts.** The Contractor must immediately pay Canada for all losses and damages suffered by Canada because of the default or occurrence upon which the notice was based, including any increase in the cost incurred by Canada in procuring the Work from another source;
 - v. **Refund of Advance Payments.** The Contractor agrees to repay immediately to Canada the portion of any advance payment that is unliquidated at the date of the termination.
 - vi. **Assessment under the Vendor Performance Corrective Measure Policy.** In the event of a full or partial termination for default, Canada will trigger a mandatory assessment of the Contractor's performance under the Vendor Performance Corrective Measure (VPCM) Policy.

18.3. Suspension of the Work. The Contracting Authority may at any time, by written notice, order the Contractor to suspend or stop the Work or part of the Work under the Contract. The Contractor must immediately comply with any such order in a way that minimizes the cost of doing so.

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19. Remedies and Liabilities.

19.1. Remedies.

- a. **Exclusive Provision.** The Parties agree that no limitation of liability or indemnity provision applies to the Contract unless it is specifically incorporated in full text.
- b. **Contractor Liability.** The Contractor is liable for any damage caused by the Contractor, its employees, subcontractors, or agents to Canada or any third party.
- c. **Canada Liability.** Canada is liable for any damage caused by Canada, its employees, or agents to the Contractor or any third party.
- d. **Damages.** Damage includes any injury to persons (including injury resulting in death) or loss of or damage to property (including real property) caused as a result of or during the performance of the Contract.

20. General Provisions.

20.1. Status of Contractor. The Contractor is an independent contractor engaged by Canada to perform the Work. The Contract does not create a partnership, a joint venture or an agency between Canada and the other Party or Parties. The Contractor must not represent itself as an agent or representative of Canada to anyone. Neither the Contractor nor any of its personnel are an employee or agent of Canada. The Contractor is responsible for all deductions and remittances required by law in relation to its employees.

20.2. Entire Agreement. The Contract and the offer document are the entire agreement between the Parties and supersedes all previous negotiations, communications and agreements.

20.3. Amendment.

- a. Amendments to the Contract must be in writing and signed by the Parties.
- b. While the Contractor may discuss any proposed modifications to the Work with other representatives of Canada, Canada will not be responsible for the cost of any modification unless it has been incorporated into the Contract in writing and signed by the Parties.

20.4. Counterparts. The Parties may execute the Contract in several counterparts, each of which is an original and all of which constitute one single agreement between the Parties.

20.5. Assignment.

- a. The Contractor may only assign this agreement if
 - i. Canada agrees to the assignment in writing; and
 - ii. the Contractor remains responsible for the assignee's performance.
- b. The assignment will be effective upon execution of an assignment agreement signed by the Parties and the assignee.

20.6. Applicable Laws. The laws in force in Québec (QC) Canada will govern the Contract and the relations between the Parties and be used to interpret the Contract. The Contractor must comply with all laws applicable to the performance of the Contract and provide evidence of compliance with those laws to Canada if requested by the Contracting Authority.

20.7. Dispute Resolution.

- a. **Open Communication Between Parties.** The Parties agree to maintain open and honest communication about the Work during and after the period of the Contract.

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- b. Parties' Cooperation.** The Parties agree to consult and co-operate with each other to further the objectives of the Contract. They will promptly notify each other of, and attempt to resolve, any problems or differences that may arise.
- c. Alternative Dispute Resolution.** If the Parties cannot resolve a dispute through consultation and cooperation, they will consult a neutral third party that offers alternative dispute resolution services.
- d. Dispute Resolution Options.** Parties can find alternative dispute resolution options on Canada's CanadaBuys website under the heading "[Dispute Resolution](#)".

20.8. Powers of Canada. All rights, remedies, powers and discretions granted or acquired by Canada under the Contract or by law are cumulative, not exclusive.

20.9. Time of the Essence. It is essential that the Contractor deliver or perform the Work within or at the time stated in the Contract.

20.10. Excusable Delay.

- a. Definition of Excusable Delay.** A delay in the performance by the Contractor or Canada of any obligation under the Contract that is caused by an event that
 - i. is beyond the reasonable control of the party,
 - ii. could not reasonably have been foreseen,
 - iii. could not reasonably have been prevented by means reasonably available to the party, and
 - iv. occurred without the fault or neglect of the party, is an "Excusable Delay" if the party advises the other party's Contracting Authority or Contractor's Representative of the occurrence of the delay or of the likelihood of the delay as soon as the party becomes aware of it. The party must also advise the other, within 15 Business Days, of all the circumstances relating to the delay and provide to the Contracting Authority or Contractor's Representative for approval a clear Workaround plan explaining in detail the steps that the party proposes to take in order to minimize the impact of the event causing the delay.
- b. Postponement of Delivery.** Either party will postpone for a reasonable time any delivery date or another date directly affected by an Excusable Delay. Any postponement will not exceed the duration of the Excusable Delay.
- c. Right to Terminate.** However, if an Excusable Delay has continued for 30 days or more, the party may terminate the Contract on written notice to the other party. In such a case, the Parties agree that neither will make any claim against the other for damages, costs, expected profits or any other loss arising out of the termination or the event that contributed to the Excusable Delay. The Contractor agrees to repay immediately to Canada the portion of any advance payment that is unliquidated at the date of the termination.
- d. Liability for Costs Incurred.** Unless Canada has caused the delay by failing to meet an obligation under the Contract, Canada will not be responsible for any costs incurred by the Contractor or any of its subcontractors or agents because of an Excusable Delay.

20.11. Priority of Documents. If there is a conflict between the wording of any documents that appear on the list, the wording of the document that first appears on the list has priority over the wording of any document that subsequently appears on the list:

- a. these Articles of Agreement;
- b. Annex Contract Definitions;

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- c. Annex A: Statement of Work
- d. Annex B: Basis of Payment;
- e. the Contractor's offer dated (to be included at Contract award)

21. Authorities.

21.1. Contracting Authority.

- a. The Contracting Authority for the Contract is:
Catherine Clairoux
Senior Procurement and Contracting Officer
Contracting and Procurement Policy Division
Canadian Food Inspection Agency (CFIA)
catherine.clairoux@inspection.gc.ca
- b. The Contracting Authority is responsible for the management of the Contract and must authorize in writing any changes to the Contract. The Contractor must not perform work in excess of or outside the scope of the Contract based on verbal or written requests or instructions from anybody other than the Contracting Authority.

21.2. Project Authority.

- a. The Project Authority for the Contract is:
(to be included at Contract award)
- b. The Work is for a department or agency. The Project Authority represents that department or agency. The Project Authority is responsible for all matters concerning the technical content of the Work under the Contract. The Contractor may discuss technical matters with the Project Authority, however the Project Authority has no authority to authorize changes to the scope of the Work. Only the Contracting Authority can issue a contract amendment to make changes to the scope of the Work.

21.3. Contractor's Representative.

- a. The Contractor's Representative for the Contract is:
(to be included at Contract award)

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Annex Solicitation of Offers Definitions

In this solicitation of offers, unless the context otherwise requires, the following terms have the following meanings.

"Applicable Trading Partner" means a country or customs territory other than Canada that is listed, pursuant to the [schedule](#) to the Canadian International Trade Tribunal Procurement Inquiry Regulations, as a party to any of the trade agreements applicable to this solicitation;

"Articles of Agreement" means the clauses and conditions incorporated in full text to form the body of the Contract; it does not include the annexes, the Contractor's offer or any other document;

"Canadian Good" means a good that is wholly manufactured or originated in Canada. Canada may also consider a product that contains imported components to be a Canadian Good for the purpose of the Canadian Content Policy when it has undergone sufficient change in Canada in a manner that satisfies the definition specified under the [Canada-United States-Mexico Agreement \(CUSMA\)](#) Rules of Origin. For the purposes of this determination, the reference in the CUSMA Rules of Origin to "territory of one or more of the Parties" is replaced with "Canada". For more information on how to determine if a good is Canadian, consult the Buyer's Portal under the [Canadian Content Policy - Rules of origin determination](#) section, Example 1.

"Canadian Supplier" means a supplier that has a place of business in Canada where it conducts activities on a permanent basis that is clearly identified by name and accessible during normal business hours; or, a joint venture where each member of the joint venture has a place of business in Canada where it conducts activities on a permanent basis that is clearly identified by name and accessible during normal business hours.

"Canadian Service" means a service provided by an individual based in Canada. If a requirement consists of only one service provided by two or more individuals, Canada will consider the service to be a Canadian Service if a minimum of 80 percent of the total offer price for the service is provided by individuals based in Canada.

"Variety of Goods" means that if a requirement consists of more than one good, Canada will apply one of the following methods:

- a. Aggregate evaluation: No less than 80 percent of the total offer price must consist of Canadian Goods, or
- b. Item-by-item evaluation: In some cases, Canada may conduct the offer evaluation on an item-by-item basis and award contracts to more than one Offeror. In such a case, Canada will ask the Offeror to identify separately each item that meets the definition of Canadian Goods.

"Variety of Services" means that if a requirement consists of more than one service, a minimum of 80 percent of the total offer price must be provided by individuals based in Canada.

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"Mix of Goods and Services" means that if a requirement consists of a mix of goods and services, no less than 80 percent of the total offer price must consist of Canadian Goods and Canadian Services.

For more information on how to determine the Canadian Content for a mix of goods, a mix of services or a mix of goods and services, consult the Buyer's Portal under the [Canadian Content Policy – Rules of origin determination](#) section, Example 2.

"Other Canadian Goods and Services" means Canada may consider textiles to be Canadian Goods according to a modified rule of origin, copies of which are available from the Clothing and Textiles Division, Commercial and Consumer Products Directorate.

"Client" means the department or agency for which the Work is performed;

"Contracting Authority" means the person designated by that title in the Contract, or by notice to the Contractor, to act as Canada's representative to manage the Contract;

"Contractor" means the person, entity or entities named in the Contract to supply goods, services, or both to Canada;

"Contract Price" means the amount stated in the Contract to be payable to the Contractor for the Work, exclusive of Applicable Taxes;

"Cost" means cost determined according to Contract Cost Principles 1031-2 as revised to the date of the solicitation of offers or, if there was no solicitation of offers, the date of the Contract;

"Date of payment" means the date of the negotiable instrument drawn by the Receiver General for Canada to pay any amount under the Contract;

"Excluded Material" refers to packaging tape - environmentally preferable material alternatives for packaging tape are not widely available. As a result, packaging tape is excluded from the environmentally preferable packaging specifications until the market has progressed and studies become available to determine otherwise;

"Former Public Servant" is any former member of a department as defined in the [Financial Administration Act](#), R.S., 1985, c. F-11, a former member of the Canadian Armed Forces or a former member of the Royal Canadian Mounted Police. A former public servant may be:

- (a) an individual;
- (b) an individual who has incorporated;
- (c) a partnership made of former public servants; or
- (d) a sole proprietorship or entity where the affected individual has a controlling or major interest in the entity;

"Joint Venture" means an association of two or more Parties who combine their money, property, knowledge, expertise or other resources in a single joint business enterprise, sometimes referred as a consortium, to offer together on a requirement;

"Lump Sum Payment" means the payment which has been made to facilitate the transition to retirement or to other employment as a result of the implementation of various programs to

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reduce the size of the Public Service. The lump sum payment period does not include the period of severance pay, which is measured in a like manner;

“Net-Zero Challenge or Equivalent” means the following accepted initiatives are deemed equivalents to the Net-Zero Challenge, ‘United Nations Race to Zero’ or ‘Science-Based Targets Initiative (SBTI)’ or ‘Carbon Disclosure Project (CDP)’ or ‘International Organization for Standardization (ISO) – ISO 14064-1:2018’

“Offeror” means the person or entity (or, in the case of a Joint Venture, the persons or entities) submitting an offer. It does not include the parent, subsidiaries or other affiliates of the Offeror, or its subcontractors;

“Packaging” means product to be used for the containment, protection, handling, delivery, storage, transport and presentation of goods. (Source: [ISO 21067-1:2016, Clause 2.1.1](#));

"Party" means Canada, the Contractor, or any other signatory to the Contract, and **"Parties"** means all of them;

“Pension” means a pension or annual allowance paid under the [Public Service Superannuation Act](#) (PSSA), R.S., 1985, c. P-36, and any increases paid pursuant to the [Supplementary Retirement Benefits Act](#), R.S., 1985, c. S-24 as it affects the PSSA. It does not include pensions payable pursuant to the [Canadian Forces Superannuation Act](#), R.S., 1985, c. C-17, the [Defence Services Pension Continuation Act](#), 1970, c. D-3, the [Royal Canadian Mounted Police Pension Continuation Act](#), 1970, c. R-10, and the [Royal Canadian Mounted Police Superannuation Act](#), R.S., 1985, c. R-11, the [Members of Parliament Retiring Allowances Act](#), R.S. 1985, c. M-5, and that portion of pension payable to the [Canada Pension Plan Act](#), R.S., 1985, c. C-8;

“Recyclable” means capable of being diverted from the waste stream through available processes and programs and can be collected, sorted, processed and returned to use in the form of raw materials or products. (Source: [CAN/CSA-ISO 14021, Clause 7.7.1](#));

“Recyclable packaging” means packaging or a packaging component is recyclable if its successful post consumer collection, sorting, and recycling is proven to work in practice and at scale. This means that there is an existing (collection, sorting and recycling) system in place that actually recycles the packaging and that covers significant and relevant geographical areas as measured by population size. (Source: adapted from the [New Plastics Economy Global Commitment](#));

“Returnable (to the Contractor)” means there is an existing and functional program in place for the packaging to be returned to the Contractor to reuse, refill, or recycle at no additional cost to the client;

“Reusable (by Canada)” means designed to be used multiple times for the same purpose without losing its original functionality, physical capability or quality. A characteristic of a product or packaging that has been conceived and designed to accomplish within its life cycle a

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certain number of trips, rotations or uses for the same purpose for which it was conceived.

(Source: [CAN/CSA-ISO 14021, Clause 7.12.1.1](#));

"Security Deposit" means (a) a bill of exchange that is payable to the Receiver General for Canada and certified by an approved financial institution or drawn by an approved financial institution on itself; or (b) a government guaranteed bond; or (c) an irrevocable standby letter of credit, or (d) such other security as may be considered appropriate by the Contracting Authority and approved by Treasury Board;

"Approved Financial Institution" means (a) any corporation or institution that is a member of the Canadian Payments Association (Payments Canada); (b) a corporation that accepts deposits that are insured by the Canada Deposit Insurance Corporation or the Régie de l'assurance-dépôts du Québec to the maximum permitted by law; (c) a credit union as defined in paragraph 137(6) of the [Income Tax Act](#); (d) a corporation that accepts deposits from the public, if repayment of the deposits is guaranteed by a Canadian province or territory; or (e) the Canada Post Corporation;

"Government-guaranteed Bond" means a bond of the Government of Canada or a bond unconditionally guaranteed as to principal and interest by the Government of Canada that is: (a) payable to bearer; (b) accompanied by a duly executed instrument of transfer of the bond to the Receiver General for Canada in accordance with the [Domestic Bonds of Canada Regulations](#); (c) registered in the name of the Receiver General for Canada;

"Irrevocable Standby Letter of Credit" (a) means any arrangement, however named or described, whereby a financial institution (the "Issuer"), acting at the request and on the instructions of a customer (the "Applicant"), or on its behalf, (i) will make a payment to or to the order of Canada, as the beneficiary; (ii) will accept and pay bills of exchange drawn by Canada; (iii) authorizes another financial institution to effect such payment, or accept and pay such bills of exchange; or (iv) authorizes another financial institution to negotiate, against written demand(s) for payment, provided that the conditions of the letter of credit are complied with; (b) must state the face amount which may be drawn against it; (c) must state its expiry date; (d) must provide for sight payment to the Receiver General for Canada by way of the financial institution's draft against presentation of a written demand for payment signed by the authorized departmental representative identified in the letter of credit by his or her office; (e) must provide that more than one written demand for payment may be presented subject to the sum of those demands not exceeding the face amount of the letter of credit; (f) must provide that it is subject to the International Chamber of Commerce (ICC) Uniform Customs and Practice (UCP) for Documentary Credits, 2007 Revision, ICC Publication No. 600. Pursuant to the ICC UCP, a credit is irrevocable even if there is no indication to that effect; and (g) must be issued (Issuer) or confirmed (Confirmer), in either official language, by a financial institution that is a member

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of the Canadian Payments Association (Payments Canada) and is on the letterhead of the Issuer or Confirmer. The format is left to the discretion of the Issuer or Confirmer;

"Specialized packaging" means packaging can be considered "specialized" if the intended use of the packaging requires technical performance specifications with no environmentally preferable alternatives. For example, when transporting hazardous materials, if there is a need for a specific density of materials, or if they must be temperature controlled;

"Specifications" means the description of the essential, functional, or technical requirements of the Work in the Contract, including the procedures for determining whether the requirements have been met;

"Supplier of an Applicable Trading Partner" means a supplier that has a place of business in an Applicable Trading Partner where it conducts activities on a permanent basis that is clearly identified by name and accessible during normal business hours; or, a joint venture where at least one member of the joint venture has a place of business in an Applicable Trading Partner where it conducts activities on a permanent basis that is clearly identified by name and accessible during normal business hours, and all other members of the joint venture either have a place of business in an Applicable Trading Partner where they conduct activities on a permanent basis that is clearly identified by name and accessible during normal business hours or are a Canadian Supplier;

"Supplier of a Non-Trading Partner" means any supplier that is not a Canadian Supplier or a Supplier of an Applicable Trading Partner; or, a joint venture where any member of the joint venture is not a Canadian Supplier or a Supplier of an Applicable Trading Partner;

"Work" means all the activities, services, goods, equipment, matters and things required to be done, delivered or performed by the Contractor under the Contract.

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Annex Contract Definitions

In the Contract, unless the context otherwise requires, the following terms have the following meanings.

"Applicable Taxes" means the Goods and Services Tax (GST), the Harmonized Sales Tax (HST), and any provincial tax, by law, payable by Canada.

"Applicable Trading Partner" means a country or customs territory other than Canada that is listed, pursuant to the [schedule](#) to the Canadian International Trade Tribunal Procurement Inquiry Regulations, as a party to any of the trade agreements applicable to this solicitation;

"Articles of Agreement" means the clauses and conditions incorporated in full text to form the body of the Contract; it does not include the annexes, the Contractor's offer or any other document.

"Average Rate" means the simple arithmetic mean of the Bank Rates in effect at 4:00 p.m. Eastern Time each day during the calendar month immediately before the calendar month in which payment is made.

"Bank Rate" means the rate of interest established from time to time by the Bank of Canada as the minimum rate at which the Bank of Canada makes short term advances to members of the Canadian Payments Association.

"Canada", "His Majesty" or "the Government" means His Majesty the King in right of Canada as represented by the Minister of Public Works and Government Services and any other person duly authorized to act on behalf of that minister or, if applicable, an appropriate minister to whom the Minister of Public Works and Government Services has delegated his or her powers, duties or functions and any other person duly authorized to act on behalf of that minister.

"Canadian Good" means a good that is wholly manufactured or originated in Canada. Canada may also consider a product that contains imported components to be a Canadian Good for the purpose of the Canadian Content Policy when it has undergone sufficient change in Canada in a manner that satisfies the definition specified under the [Canada-United States-Mexico Agreement \(CUSMA\)](#) Rules of Origin. For the purposes of this determination, the reference in the CUSMA Rules of Origin to "territory of one or more of the Parties" is replaced with "Canada". For more information on how to determine if a good is Canadian, consult the Buyer's Portal under the [Canadian Content Policy - Rules of origin determination](#) section, Example 1.

"Canadian Supplier" means a supplier that has a place of business in Canada where it conducts activities on a permanent basis that is clearly identified by name and accessible during normal business hours; or, a joint venture where each member of the joint venture has a place of business in Canada where it conducts activities on a permanent basis that is clearly identified by name and accessible during normal business hours;

"Canadian Service" means a service provided by an individual based in Canada. If a requirement consists of only one service provided by two or more individuals, Canada will

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consider the service to be a Canadian Service if a minimum of 80 percent of the total offer price for the service is provided by individuals based in Canada.

"Variety of Goods" means that if a requirement consists of more than one good, Canada will apply one of the following methods:

- a. Aggregate evaluation: No less than 80 percent of the total offer price must consist of Canadian Goods, or
- b. Item-by-item evaluation: In some cases, Canada may conduct the offer evaluation on an item-by-item basis and award contracts to more than one Offeror. In such a case, Canada will ask the Offeror to identify separately each item that meets the definition of Canadian Goods.

"Variety of Services" means that if a requirement consists of more than one service, a minimum of 80 percent of the total offer price must be provided by individuals based in Canada.

"Mix of Goods and Services" means that if a requirement consists of a mix of goods and services, no less than 80 percent of the total offer price must consist of Canadian Goods and Canadian Services.

For more information on how to determine the Canadian Content for a mix of goods, a mix of services or a mix of goods and services, consult the Buyer's Portal under the [Canadian Content Policy – Rules of origin determination](#) section, Example 2.

"Other Canadian Goods and Services" means Canada may consider textiles to be Canadian Goods according to a modified rule of origin, copies of which are available from the Clothing and Textiles Division, Commercial and Consumer Products Directorate.

"Contract" means the Articles of Agreement, the terms and conditions, annexes and any other document specified or referred to as forming part of the Contract, all as amended by agreement of the Parties from time to time.

"Contractor" means the person, entity or entities named in the Contract to supply goods, services or both to Canada.

"Contract Price" means the amount stated in the Contract to be payable to the Contractor for the Work, exclusive of Applicable Taxes.

"Contract Period" means the entire period of time during which the Contractor is obliged to perform the Work, which includes initial Contract Period and the period during which the Contract is extended, if Canada chooses to exercise any options set out in the Contract.

"Cost" means cost determined according to Contract Cost Principles 1031-2 as revised to the date of the solicitation of offers or, if there was no solicitation of offers, the date of the Contract.

"Date of payment" means the date of the negotiable instrument drawn by the Receiver General for Canada to pay any amount under the Contract.

"Excluded Material" refers to packaging tape - environmentally preferable material alternatives for packaging tape are not widely available. As a result, packaging tape is excluded from the

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environmentally preferable packaging specifications until the market has progressed and studies become available to determine otherwise.

"Government Property" means anything supplied to the Contractor by or on behalf of Canada for the purposes of performing the Contract and anything acquired by the Contractor in any manner in connection with the Work, the cost of which is paid by Canada under the Contract.

"Net-Zero Challenge or Equivalent" means the following accepted initiatives are deemed equivalents to the Net-Zero Challenge, 'United Nations Race to Zero' or 'Science-Based Targets Initiative (SBTI)' or 'Carbon Disclosure Project (CDP)' or 'International Organization for Standardization (ISO) – ISO 14064-1:2018'

"Overdue" means an amount that is unpaid on the first day following the day on which it is due and payable according to the Contract.

"Packaging" means product to be used for the containment, protection, handling, delivery, storage, transport and presentation of goods. (Source: [ISO 21067-1:2016, Clause 2.1.1](#)).

"Party" means Canada, the Contractor, or any other signatory to the Contract and **"Parties"** means all of them.

"Personal Information" means information about an individual, including the types of information specifically described in the [Privacy Act](#), R.S. 1985, c. P-21;

"Record" means any hardcopy document or any data in a machine-readable format containing Personal Information;

"Recyclable" means capable of being diverted from the waste stream through available processes and programs and can be collected, sorted, processed and returned to use in the form of raw materials or products. (Source: [CAN/CSA-ISO 14021, Clause 7.7.1](#)).

"Recyclable packaging" means packaging or a packaging component is recyclable if its successful post consumer collection, sorting, and recycling is proven to work in practice and at scale. This means that there is an existing (collection, sorting and recycling) system in place that actually recycles the packaging and that covers significant and relevant geographical areas as measured by population size. (Source: adapted from the [New Plastics Economy Global Commitment](#)).

"Returnable (to the Contractor)" means there is an existing and functional program in place for the packaging to be returned to the Contractor to reuse, refill, or recycle at no additional cost to the client.

"Reusable (by Canada)" means designed to be used multiple times for the same purpose without losing its original functionality, physical capability or quality. A characteristic of a product or packaging that has been conceived and designed to accomplish within its life cycle a certain number of trips, rotations or uses for the same purpose for which it was conceived. (Source: [CAN/CSA-ISO 14021, Clause 7.12.1.1](#)).

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"Security Deposit" means (a) a bill of exchange that is payable to the Receiver General for Canada and certified by an approved financial institution or drawn by an approved financial institution on itself; or (b) a government guaranteed bond; or (c) an irrevocable standby letter of credit, or (d) such other security as may be considered appropriate by the Contracting Authority and approved by Treasury Board.

"Approved Financial Institution" means (a) any corporation or institution that is a member of the Canadian Payments Association (Payments Canada); (b) a corporation that accepts deposits that are insured by the Canada Deposit Insurance Corporation or the Régie de l'assurance-dépôts du Québec to the maximum permitted by law; (c) a credit union as defined in paragraph 137(6) of the [Income Tax Act](#); (d) a corporation that accepts deposits from the public, if repayment of the deposits is guaranteed by a Canadian province or territory; or (e) the Canada Post Corporation.

"Government-guaranteed Bond" means a bond of the Government of Canada or a bond unconditionally guaranteed as to principal and interest by the Government of Canada that is: (a) payable to bearer; (b) accompanied by a duly executed instrument of transfer of the bond to the Receiver General for Canada in accordance with the [Domestic Bonds of Canada Regulations](#); (c) registered in the name of the Receiver General for Canada.

"Irrevocable Standby Letter of Credit" (a) means any arrangement, however named or described, whereby a financial institution (the "Issuer"), acting at the request and on the instructions of a customer (the "Applicant"), or on its behalf, (i) will make a payment to or to the order of Canada, as the beneficiary; (ii) will accept and pay bills of exchange drawn by Canada; (iii) authorizes another financial institution to effect such payment, or accept and pay such bills of exchange; or (iv) authorizes another financial institution to negotiate, against written demand(s) for payment, provided that the conditions of the letter of credit are complied with; (b) must state the face amount which may be drawn against it; (c) must state its expiry date; (d) must provide for sight payment to the Receiver General for Canada by way of the financial institution's draft against presentation of a written demand for payment signed by the authorized departmental representative identified in the letter of credit by his or her office; (e) must provide that more than one written demand for payment may be presented subject to the sum of those demands not exceeding the face amount of the letter of credit; (f) must provide that it is subject to the International Chamber of Commerce (ICC) Uniform Customs and Practice (UCP) for Documentary Credits, 2007 Revision, ICC Publication No. 600. Pursuant to the ICC UCP, a credit is irrevocable even if there is no indication to that effect; and (g) must be issued (Issuer) or confirmed (Confirmer), in either official language, by a financial institution that is a member of the Canadian Payments Association (Payments Canada) and is on the letterhead of the Issuer or Confirmer. The format is left to the discretion of the Issuer or Confirmer.

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"Specialized packaging" means packaging can be considered "specialized" if the intended use of the packaging requires technical performance specifications with no environmentally preferable alternatives. For example, when transporting hazardous materials, if there is a need for a specific density of materials, or if they must be temperature controlled.

"Specifications" means the description of the essential, functional or technical requirements of the Work in the Contract, including the procedures for determining whether the requirements have been met.

"Supplier of an Applicable Trading Partner" means a supplier that has a place of business in an Applicable Trading Partner where it conducts activities on a permanent basis that is clearly identified by name and accessible during normal business hours; or, a joint venture where at least one member of the joint venture has a place of business in an Applicable Trading Partner where it conducts activities on a permanent basis that is clearly identified by name and accessible during normal business hours, and all other members of the joint venture either have a place of business in an Applicable Trading Partner where they conduct activities on a permanent basis that is clearly identified by name and accessible during normal business hours or are a Canadian Supplier;

"Supplier of a Non-Trading Partner" means any supplier that is not a Canadian Supplier or a Supplier of an Applicable Trading Partner; or, a joint venture where any member of the joint venture is not a Canadian Supplier or a Supplier of an Applicable Trading Partner;

"Work" means all the activities, services, goods, equipment, matters and things that the Contractor is required to do, deliver or perform under the Contract.

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Annex Offer Submission Form

1. Identification of Joint Venture Parties For a proposal submitted on behalf of a Joint Venture, provide the information or indicate "N/A" if not applicable.	
Name(s) of Joint Venture Members	
PBN(s) of Joint Venture Members	
Authorized Representative of the Joint Venture	
Name	
Title	
Telephone Number	
Email	
2. Applicable Laws Offerors may substitute the applicable laws of another Canadian province or territory by deleting the name of the specified jurisdiction and inserting the name of the province or territory of their choice. If the Offeror has not made a change, the Offeror acknowledges its acceptance of the jurisdiction specified in this offer solicitation.	
Applicable Laws	
3. Electronic Payments The Offeror accepts the following payments (check all that applies):	
☐ VISA Acquisition Card ☐ MasterCard Acquisition Card ☐ Direct Deposit (Domestic and International) ☐ Electronic Data Interchange (EDI) ☐ Wire Transfer (International Only) ☐ Large Value Transfer System (LVTS) (Over \$25 million dollars)	
4. Language preferences The Offeror wishes that communications and documents be made in:	
☐ English ☐ French	

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Annex Offeror Declaration Form

Offeror's Full Legal Name	
Once you have read and understood each statement, please respond by checking () for each certification below. The Offeror certifies to Canada that its responses below are complete and truthful.	
Acceptance of Clauses and Conditions	
() Offerors who submit an offer agree to be bound by the instructions, clauses and conditions of the offer solicitation and accept the clauses and conditions of the resulting contract.	
Declaration - Reciprocal Procurement	
This solicitation of offers is only open to Canadian Suppliers and to Suppliers of an Applicable Trading Partner as defined in the Annex Solicitation of Offer Definitions.	
The Offeror certifies that:	
() it is a Canadian Supplier, as defined in Annex Solicitation of Offers Definitions.	
() the address provided below is the Offeror's place of business; or in the case of a joint venture, the address(es) provided below are the place of business for each member of the joint venture.	
Insert Address(es) of Place of Business	

or	
The Offeror certifies that:	
() it is a Supplier of an Applicable Trading Partner, as defined in Annex Solicitation of Offers Definitions.	
() the address provided below is the Offeror's place of business, or the case of a joint venture, the address(es) provided below are the place of business of each member of the joint venture.	
Insert Address(es) of Places of Business	

For the purpose of determining the location of an offeror's place of business for eligibility under the Policy on Reciprocal Procurement, Canada will only use the address(es) provided in this declaration.	
Federal Contractors Program for Employment Equity (FCP)	
Eligibility to submit an offer Federal Contractors Program for Employment Equity	() The Offeror, and any of its members if it is a joint venture, is not named on the Federal Contractors Program (FCP) for Employment Equity " FCP Limited Eligibility to Bid " list. <i>Canada may declare an offer non-compliant if the Offeror, or any of its members if the Offeror is a joint venture, appears on the "FCP Limited Eligibility to Bid" list at the time of contract award.</i>

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Accuracy and Integrity	
Accuracy of information	() All the information that the Offeror submits with its offer is true, accurate, and complete as of the date indicated below.
Code of Conduct for Procurement	() The Offeror complies with Canada's Code of Conduct for Procurement .
Offeror Resources The Offeror, if awarded a resulting contract, will provide the resources proposed in its offer	
Named individuals	() The Offeror certifies that every individual proposed in the offer will be available to perform the Work as required by and at the time specified in this solicitation of offers.
<i>If for reasons beyond its control, the Offeror is unable to provide the services of an individual named in its offer, the Offeror may propose a substitute with similar qualifications and experience. Canada will, for these purposes, consider only the following reasons as being beyond the Offeror's control: death, sickness, maternity and parental leave, retirement, resignation, dismissal for cause, and termination of an agreement for default.</i> <i>The Offeror must advise Canada of the reason for the substitution and provide the substitute resource's name, qualifications, and experience. Canada will evaluate the substitution against the same requirements as the original resource.</i>	
Non-employees	() The Offeror certifies that it has the consent of every non-employee to perform the services proposed in the offer and to submit each non-employee's résumé to Canada.
<i>The Offeror must, upon Canada's request, provide a written confirmation, signed by the individual, of that permission and of the resource's availability.</i>	
Former Public Servant Contracts awarded to former public servants ("FPS") who receive a federal government pension or lump sum payment must bear the closest public scrutiny, and reflect fairness in the spending of public funds. To comply with Treasury Board policies and directives on contracts awarded to FPS, Offerors must provide the information required below before contract award. <i>Each Offeror acknowledges that the successful Offeror's status, with respect to being a former public servant who received a pension, will be reported on departmental websites as part of the published proactive disclosure reports in accordance with Contracting Policy Notice and the Guidelines on the Proactive Disclosure of Contracts.</i>	
Is the Offeror an FPS who receives a pension?	() Yes (If yes, please fill out Former Public Servant - Receipt of Pension section below) () No

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Is the Offeror an FPS who received a lump sum payment under a Work Force Adjustment Directive?	☐ Yes (If yes, please fill out Former Public Servant - Receipt of Lump Sum Payment section below) ☐ No
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Form: Former Public Servant - Receipt of Pension

If the Offeror is in receipt of a pension, the Offeror must provide the following information for each FPS in receipt of a pension.

Name of former public servant	
Date of termination of employment or retirement from the Public Service	

Form: Former Public Servant - Receipt of Lump Sum Payment

If the Offeror is a FPS who received a lump sum payment pursuant to the terms of the Work Force Adjustment Directive, please provide the following information.

Name of former public servant	
Conditions of the lump sum payment incentive	
Date of termination of employment	
Amount of lump-sum payment	
Rate of pay on which lump sum payment is based	
Period of lump-sum payment (start date, end date and number of weeks)	
Number and amount of other contracts subject to the restrictions of a	

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workforce adjustment program	
Signatures	
Signature of representative authorized to sign on behalf of the Offeror	
Name:	
Title:	
Date:	

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Annex A: Statement of Work

1. Title – Fall Protection and Belay Techniques

2. Background

The Canadian Food Inspection Agency (CFIA) (the Agency) is required to inspect ship cargo holds prior to the loading of grain. As part of these activities, inspectors must use the required protective equipment and master the necessary manoeuvres to safely descend into a ship's hold. During each descent into a hold, a second CFIA inspector must be present on deck to provide belay support and act as a safety watch. This individual, a CFIA employee, must also be trained and competent in the application of the various safety techniques.

To meet these operational requirements, a Fall Protection Plan must be drafted and developed jointly by the Contractor and CFIA and reviewed periodically, as required by the Agency. In addition, mandatory training on fall prevention and safe work methods must be provided to all affected CFIA employees, and all fall protection equipment used during these inspections must be subject to annual inspection.

3. Acronyms

CFIA	Canadian Food Inspection Agency
SOW	Statement of Work
SPRAT	Society of Professional Rope Access Technicians
COHSR	Canada Labour Code, Occupational Health and Safety Regulations

4. Tasks

4.1. Drafting and Updating of the Fall Protection Plan

The Contractor's qualified technicians, certified by the Society of Professional Rope Access Technicians (SPRAT), must draft a Fall Protection Plan in collaboration with experts from the Canadian Food Inspection Agency (CFIA). The drafting and/or updating of the procedure identified in the Fall Protection Plan must be completed in accordance with section 12.6 of the Canada Labour Code, Occupational Health and Safety Regulations (COHSR), and in accordance with CFIA's operational requirements. The procedure identified in the Fall Protection Plan must include:

- Belay techniques and best practices for inspectors;
- Best practices and responsibilities of the safety watch (sentinel); and
- Review and standardization of equipment records, including manufacturers' instructions for maintenance and storage.

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Modifications may be requested and implemented until CFIA is fully satisfied.

4.2. **Fall Protection and Belay Techniques Training**

The Contractor must provide both practical and theoretical training specifically tailored to employees of the Canadian Food Inspection Agency (CFIA) who conduct ship cargo hold inspections. In accordance with subsection 12.15(2) of the COHSR, any person using fall protection equipment must receive training on the use, commissioning, and maintenance of such equipment. Training requirements are as follows:

- Must be delivered in facilities suitable for practical exercises;
- Must be adapted to the realities of work performed on board ships;
- Must be delivered by qualified trainers certified by SPRAT; and
- Must include all equipment required to complete the training.

Upon completion of the training, CFIA employees must be able to work safely at heights; understand applicable standards and regulatory requirements; properly use fall protection equipment; and understand the underlying principles of fall protection.

The two types of training required are:

- a. Extended training – Intended for employees attending the training for the first time;
- b. Short training – Refresher training (renewal) every three (3) years.

A certificate of successful completion must be issued to each participant at the end of the training.

4.3. **Annual Equipment Inspection**

The Contractor is responsible for conducting annual inspections—and inspections upon request by the Canadian Food Inspection Agency (CFIA)—of CFIA's fall protection equipment in accordance with the Canada Labour Code (Part II) and CSA Standard Z259.

Annual inspection requirements are as follows:

- A complete inspection record must be produced for each employee; and
- The record must detail all equipment assessed and its condition.

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5. Delivery Date

Task	Delivery Date
4.1	Two months following contract award date
4.2	One to two times per year or as per CFIA operational requirements
4.3	Once per year or as per CFIA operational requirements.

6. Working Language

French.

7. Delivery Address

The work must be carried out and completed at the Contractor's site within the Province of Quebec (QC).

8. Travel

The Contractor is not required to travel.

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Annex B: Basis of Payment

The Offeror must complete this Basis of Payment for each period identified below and include it as part of its Financial Proposal. The inclusion of volumetric data in this document does not represent a commitment by Canada, or that Canada's future usage of the services described in the Solicitation of offers will be consistent with this data, it has been provided to assist for Offerors in their Financial Proposal for price determination only.

The rates identified below must be all-inclusive firm rates, in Canadian dollars, exclusive of applicable taxes, and must include all costs related with the performance of the Work including, but is not limited to, any travel or living expenses that may be incurred for the Work described in the Statement of Work at Annex A.

Initial Contract Period from Award to March 31 st , 2027			
Services	Description	Firm Price	Volumetric Data
Draft of Fall Protection Plan and updates	Draft and updates on a as and when required basis, of a Fall Protection Plan including Belay Techniques in collaboration with CFIA experts.	\$_____/ plan including necessary updates	One (1) Fall Protection Plan including updates "on request" by the CFIA
Fall Protection and Belay Techniques Training	Practical and theoretical training specifically tailored to employees of the CFIA who conduct ship cargo hold inspections. • Extended Training (Initial Training) • Short Training (Renewal)	\$_____/ per employee (Extended Training)	Twice (2) a year for approximately two (2) CFIA employees
		\$_____/ per employee (Short Training)	Twice (2) a year for approximately seven (7) CFIA employees
Annual Equipment Inspections	Annual and "on request" inspections of CFIA's fall protection equipment in accordance with the Canada Labour Code (Part II) and CSA Standard Z259 including inspection report.	\$_____/ per inspection	Twice (2) a year for approximately fourteen (14) CFIA employees
Total Estimated Cost			

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Option Period One from April 1 st , 2027, to March 31 st , 2028			
Services	Description	Firm Price	Volumetric Data
Fall Protection Plan Updates	Updates on a as and when required basis, of the established Fall Protection Plan including Belay Techniques.	\$_____/ per year for the necessary updates	Fall Protection Plan updates "on request" by the CFIA
Fall Protection and Belay Techniques Training	Practical and theoretical training specifically tailored to employees of the CFIA who conduct ship cargo hold inspections. • Extended Training (Initial Training) • Short Training (Renewal)	\$_____/ per employee (Extended Training)	Twice (2) a year for approximately two (2) CFIA employees
		\$_____/ per employee (Short Training)	Twice (2) a year for approximately seven (7) CFIA employees
Annual Equipment Inspections	Annual and "on request" inspections of CFIA's fall protection equipment in accordance with the Canada Labour Code (Part II) and CSA Standard Z259 including inspection report.	\$_____/ per inspection	Twice (2) a year for approximately fourteen (14) CFIA employees
Total Estimated Cost			

Option Period Two from April 1 st , 2028, to March 31 st , 2029			
Services	Description	Firm Price	Volumetric Data
Fall Protection Plan Updates	Updates on a as and when required basis, of the established Fall Protection Plan including Belay Techniques.	\$_____/ per year for the necessary updates	Fall Protection Plan updates "on request" by the CFIA
Fall Protection and Belay Techniques Training	Practical and theoretical training specifically tailored to employees of	\$_____/ per employee (Extended Training)	Twice (2) a year for approximately two (2) CFIA employees

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	the CFIA who conduct ship cargo hold inspections. • Extended Training (Initial Training) • Short Training (Renewal)	\$ _____ / per employee (Short Training)	Twice (2) a year for approximately seven (7) CFIA employees
Annual Equipment Inspections	Annual and "on request" inspections of CFIA's fall protection equipment in accordance with the Canada Labour Code (Part II) and CSA Standard Z259 including inspection report.	\$ _____ / per inspection	Twice (2) a year for approximately fourteen (14) CFIA employees
Total Estimated Cost			

Option Period Three from April 1 st , 2029, to March 31 st , 2030			
Services	Description	Firm Price	Volumetric Data
Fall Protection Plan Updates	Updates on a as and when required basis, of the established Fall Protection Plan including Belay Techniques.	\$ _____ / per year for the necessary updates	Fall Protection Plan updates "on request" by the CFIA
Fall Protection and Belay Techniques Training	Practical and theoretical training specifically tailored to employees of the CFIA who conduct ship cargo hold inspections. • Extended Training (Initial Training) • Short Training (Renewal)	\$ _____ / per employee (Extended Training)	Twice (2) a year for approximately two (2) CFIA employees
		\$ _____ / per employee (Short Training)	Twice (2) a year for approximately seven (7) CFIA employees
Annual Equipment Inspections	Annual and "on request" inspections of CFIA's fall protection equipment in accordance with the Canada Labour Code (Part II) and CSA Standard Z259 including inspection report.	\$ _____ / per inspection	Twice (2) a year for approximately fourteen (14) CFIA employees
Total Estimated Cost			

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Total Estimated Price (Initial Contract Period + Option Period One + Option Period Two + Option Period Three)	\$
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